

Before the
FEDERAL MARITIME COMMISSION
Washington, DC 20573

FILED

Petition No. P4-18

SEP 14 2018

Federal Maritime Commission
Office of the Secretary

Petition of Dole Ocean Cargo Express, Inc.
For an Exemption from 46 C.F.R. §530.10

1. Pursuant to Rule 94 of the Commission's Rules of Practice and Procedure, 46 C.F.R. §502.94, Dole Ocean Cargo Express Inc. ("DOCE") hereby petitions the Commission for relief from the provisions of 46 C.F.R. §530.10 relating to the filing of individual service contract amendments.
2. DOCE is an ocean common carrier. As part of an internal corporate restructuring, on or about November 1, 2018, the assets of DOCE will be transferred to a new limited liability company, Dole Ocean Cargo Express, LLC. Among the assets being transferred are DOCE's service contracts with its customers, which will be assigned to Dole Ocean Cargo Express, LLC. There are over two hundred (200) such contracts.
3. The assignment of DOCE's service contracts to Dole Ocean Cargo Express, LLC, even when performed in accordance with the terms of those contracts and the applicable contract law, would require the filing with the FMC of an amendment to each service contract.
4. It would be an undue burden on DOCE and the shipper parties to prepare and file an individual amendment for each of these service contracts. Therefore, DOCE respectfully requests that the Commission permit a universal notice to the Commission and to the service

contract parties in lieu of filing an amendment for each contract. See 46 C.F.R. §530.10(b). In addition to any notice that the Commission may require DOCE to file in the SERVCON system pursuant to this Petition, a notice in substantially the following form would be sent electronically to each shipper signatory to a service contract with DOCE:

Effective November 1, 2018, the assets of the commercial cargo business of Dole Ocean Cargo Express, Inc., including your service contract, will be transferred to Dole Ocean Cargo Express, LLC, which will perform the container transportation formerly performed by Dole Ocean Cargo Express, Inc. The terms of your service contract will remain unchanged and you will receive the same service you presently receive. We have submitted a petition to the FMC with respect to the service contract amendment filing requirements that would otherwise be applicable to this assignment. To the extent your service contract permits assignment by notice, please consider this to be that notice. If your service contract requires that you consent to this assignment or agree to an amendment of the contract, or prohibits assignment, we ask you to advise us by reply e-mail no later than October 1, 2018 if you require a formal consent or amendment to be prepared, or if you do not waive the prohibition against assignment. If we have not heard from you by then or you continue to tender cargo under the contract on or after November 1, 2018, we will understand you agreed to the assignment and do not require a formal consent or amendment, or that you have waived the prohibition against assignment. Of course, if you have any questions, please let us know.

5. The existing DOCE tariffs will be terminated with a notice that will cross-reference the new Dole Ocean Cargo Express, LLC tariffs, which will govern the assigned service contracts, thereby eliminating the need to amend the service contracts to change the reference to the governing tariffs. The new Dole Ocean Cargo Express, LLC tariffs will be identical to the existing DOCE tariffs, so this change in governing tariffs will not alter the terms and conditions under which service is provided to service contract signatories.
6. The standard for granting an exemption is that set out in 46 U.S.C. § 40103(a), which is that “the exemption will not result in a substantial reduction in competition or be detrimental to commerce.” As the Commission stated in granting a similar exemption requested by Crowley (Docket No. P4-15) because a service contract amendment is of the type described herein is “purely administrative,” it is “unlikely that [such an] amendment will result in a substantial

reduction in competition or be detrimental to commerce.” The Commission has also granted other, comparable petitions on the same grounds, most recently Petitions P5-17, P4-17, and P3-17.

7. The relief sought in this petition is, like that granted in the petitions cited above, purely administrative in nature. DOCE respectfully submits that the that the notice in paragraph 4 (and any consent required by a shipper), as well as the tariff notice described in paragraph 5, fully inform and protect all service contract signatories, as well as the Commission. We further submit that all regulatory concerns are satisfied and that this petition, like the petitions for similar relief previously granted by the Commission, should be granted.

Respectfully submitted,



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